

#	Case Name	Tentative
1	Maddah vs. Luo 2024-01437781	Demurrer to Complaint Defendant Lilia Luo’s Demurrer is SUSTAINED with 20 days leave to amend. Luo is named in the caption of the Complaint as the sole Defendant. However, Plaintiffs allege Creative Dynasty Estate is the landlord of the premises they are occupying. Further, Plaintiffs define “Defendant” as referring to Creative Dynasty Estate and all allegations are directed to “Defendant”. Luo is not mentioned in the body of the Complaint. Therefore, Plaintiffs have failed to allege any claims against Luo and the Demurrer must be sustained. Leave to amend should be liberally granted unless the complaint shows on its face that it is unable to be amended. (<i>City of Stockton v. Superior Court</i> (2007) 42 Cal.4th 730, 747.) It is not evident from the face of the Complaint that no cause of action can be alleged against Luo. Thus, leave to amend is granted.
2	Martinez vs. Rosenberg 2024-01435685	Demurrer to Complaint The general demurrer of defendant Gary Rosenberg, D.O., to the third cause of action in the complaint of plaintiffs Kristina Martinez and Benjamin Smith is SUSTAINED with 20 days’ leave to amend. Defendant Gary Rosenberg, D.O., demurs generally to the third cause of action for fraudulent concealment. The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. <u>Hambrick v. Healthcare Partners Medical Group, Inc.</u> (2015) 238 Cal.App.4th 124, 162. Fraud must be pleaded with specificity, to provide the defendants with the fullest possible details of the charge so they are able to prepare a defense to this serious attack.

Goldrich v. Natural Y Surgical Specialties (1994) 25 Cal.App.4th 772, 782. To withstand a demurrer, the *facts* constituting every element of the fraud must be alleged with particularity, and the claim cannot be salvaged by references to the general policy favoring the liberal construction of pleadings. Ibid. Even in a case involving numerous oft-repeated misrepresentations, the plaintiff must, at a minimum, set out a representative selection of the alleged misrepresentations sufficient to permit the trial court to ascertain whether the statements were material and otherwise actionable. Id. at p. 783.

Although plaintiffs contend in their opposition that they have sufficiently set forth the elements of fraudulent concealment, the cause of action is devoid of facts. In ¶ 46 of the third cause of action, plaintiffs allege as follows:

Defendant, GARY ROSENBERG, D.O., intentionally failed to disclose to Plaintiff, KRISTINA MARTINEZ, known facts or facts that could have been discovered by him, including that there was a retained foreign body, specifically, set screw guidance hardware, that was negligently left behind during her July 27, 2023 surgery. This information was withheld despite available post-operative imaging immediately following the surgery and imaging from September 5, 2023 which clearly revealed that set screw guidance hardware that had been negligently left behind during the July 27, 2023 [surgery]. This fact was known to Defendant, GARY ROSENBERG, D.O., between July 27, 2023 and September 14, 2023, by Defendant, GARY ROSENBERG, D.O., intentionally failed to disclose this fact to Plaintiff, KRISTINA MARTINEZ, and concealed it in order to deceive Plaintiff, Krisina Martnez, and avoid having her find out about it and having it reported to the California Medical Board.

Among other things, these allegations fail to show that moving defendant intentionally concealed anything from plaintiff because the first sentence is pled in the alternative and the alternative allegation is that defendant “could have known” about the retained foreign body. Also, the allegations fail to show how moving defendant discovered the retained foreign body, notwithstanding the allegation that imaging was available immediately after the surgery.

		Thus, the general demurrer to the third cause of action is SUSTAINED with 20 days leave to amend.
3	Martinez medina vs. Santa Ana Unified School District 2023-01320099	Demurrer to Cross- Complaint Cross-Defendant Santa Ana Unified School District's unopposed demurrer to the Cross-Complaint filed by Cross-Complainants Kevin Harris, in <i>pro per</i>, and M. Harris, a minor, in <i>pro per</i> is SUSTAINED with 20-days leave to amend. Cross-Defendant challenges the Cross-Complaint in its entirety on the grounds it fails to plead compliance or excuse for such compliance with the Government Tort Claims Act. Pursuant to Government Code section 945.4, "no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented...until a written claim therefor has been presented to the public entity and has been acted upon. . . or has been deemed to have been rejected. . ." (Gov. Code §945.4). The requirement "is not merely procedural, but is a condition precedent to maintaining a cause of action and, thus, is an element of the plaintiff's cause of action. [Citation.] As a result, the 'failure to allege facts demonstrating or excusing compliance with the claim presentation requirements subjects a claim against a public entity to a demurrer for failure to state a cause of action.' [Citation.]" (<i>Perez v. Golden Empire Transit Dist.</i> (2012) 209 Cal.App.4th 1228, 1236; see also <i>State of California v. Superior Court (Bodde)</i> (2004) 32 Cal.4th 1234, 1243.) Here, the Cross-Complaint fails to allege compliance or excuse from compliance with the claim presentation requirement. Cross-Complainants seek monetary damages as to each cause of action and, consequently, a claim was required as to each. (Gov. Code, §945.4.) Based on the foregoing, the demurrer is SUSTAINED with 20-days leave to amend. Moving party to give notice.